

ORDINANCE NO. _____

ENTITLED: "ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PORTION OF LOT 1, BLOCK 1, CHEYENNE HILLS CHURCH SUBDIVISION AND PORTIONS OF THE EAST HALF OF SECTION 25, T.14N., R.66W., OF THE 6TH P.M., LARAMIE COUNTY, WYOMING (LOCATED NORTH OF AND INCLUDING PERSHING BOULEVARD, EAST OF FARTHING ROAD; ALSO LOCATED SOUTH OF SAGE ROAD, EAST OF GUNSMOKE ROAD)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That WJE, LLC and Laramie County School District No. 1, owners of a portion of Lot 1, Block 1, Cheyenne Hills Church Subdivision and portions of the east half of Section 25, T.14N., R.66W., of the 6th P.M., Laramie County, Wyoming, have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffrey B. Jones, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 5910; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned MR Medium-density Residential by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

MARIAN J. ORR, MAYOR

(SEAL)

CAROL INTLEKOFER, CITY CLERK

published: _____

STAFF REPORT - SUMMATION

Saddle Ridge, 13th Filing **Annexation**

CASE NUMBER: UDC-18-00074

SUBDIVISION CODE: CHCS 01 / UNP

PREPARED BY: Eric Hammer / Seth Lloyd

MEETING DATES:	April 9, 2018 – City Council	1 st Reading/ Public Hearing
	April 17, 2018 – Public Services Committee	1 st Reading
	April 23, 2018 – City Council	2 nd Reading
	May 8, 2018 – Public Services Committee	2 nd Reading
	May 14, 2018 – City Council	3 rd Reading

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Master Application; Annexation Map; - Submitted 2/23/2018 as the original project submission.
- Petition Signed by Property Owners; Soils Investigation – Submitted 2/28/2018 to complete submittal.
- Revised Annexation Map – Submitted 3/23/2018 (submitted to address staff comments)

STAFF RECOMMENDATION: Staff recommends conditional approval by the Governing Body with no conditions.

STAFF REPORT

Saddle Ridge, 13th Filing **Annexation**

CASE NUMBER: UDC-18-00074
PREPARED BY: Eric Hammer / Seth Lloyd

SUBDIVISION CODE: CHCS 01/UNP

OWNER WJE LLC
John Edwards
506 Shoshoni St.
Cheyenne, WY 82009

AGENT: John Edwards
506 Shoshoni St.
Cheyenne, WY 82009

PROJECT: Saddle Ridge, 13th Filing Annexation.

DESCRIPTION: Petition to annex 23.63 acres into the City for residential development and school facility.

LOCATION:

1. Legal Description: A portion of Lot 1, Block 1, Cheyenne Hills Church Subdivision and portions of the east half of Section 25, T.14N., R.66W., of the 6th P.M., Laramie County, Wyoming.
2. Location: Located north of and including Pershing Boulevard, east of Farthing Road; also located south of Sage Road, east of Gunsmoke Road.
3. Address: Unaddressed.

PROPERTY SIZE: 23.63 acres.

CURRENT ZONING: County A-1 Agricultural and Rural Residential.

PROPOSED ZONING: City MR Medium-density Residential and P Public.

EXISTING USE: Vacant.

PROPOSED USE: Residential, school facility.

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Residential/Agricultural	A-1	County
South	Residential	AR	County
East	Vacant	A-1	County
West	Residential	MR	City

EXECUTIVE SUMMARY:

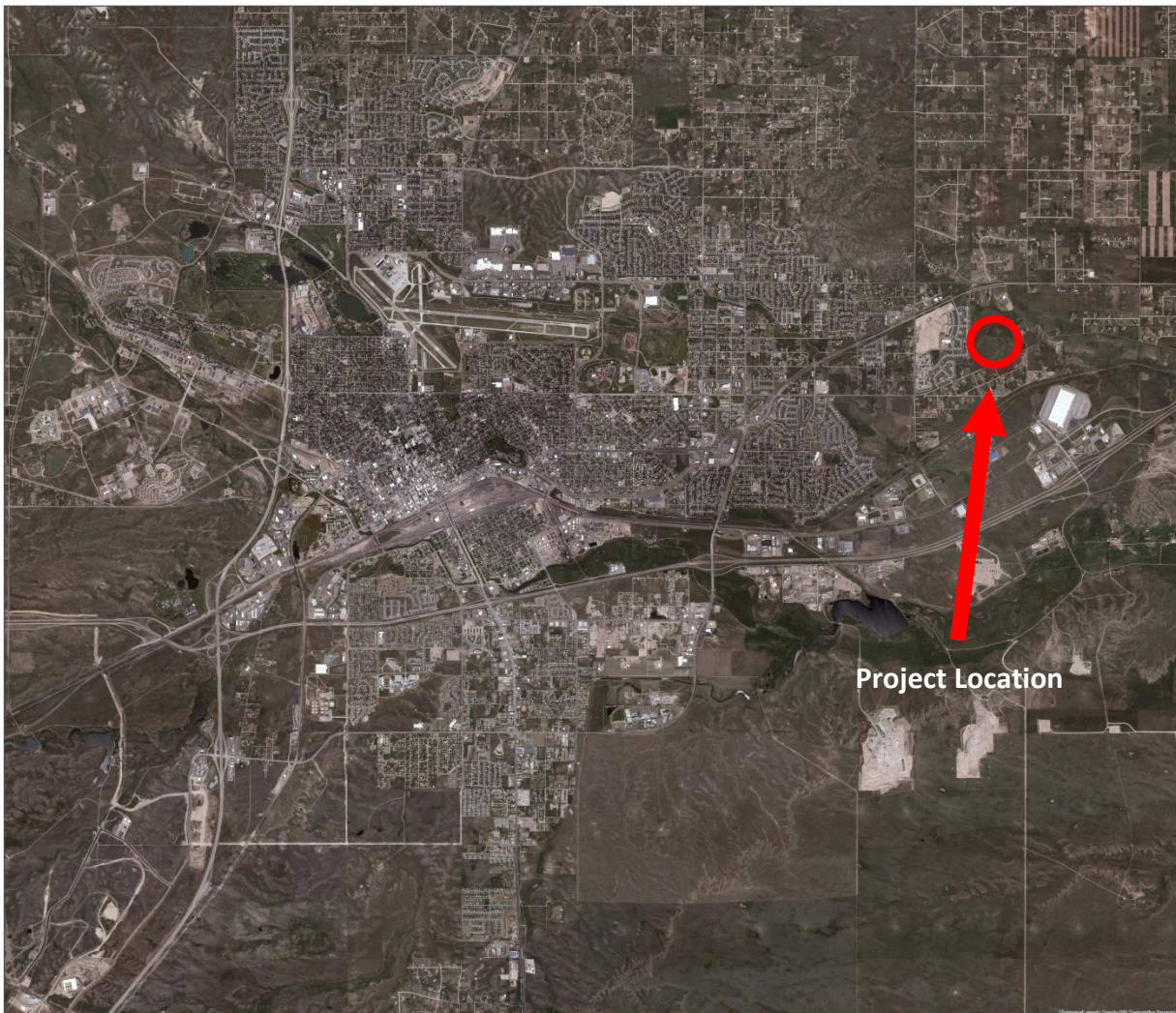
The applicants have proposed annexing the subject property to facilitate the continued development of the area with residential units and the construction of a school facility to serve the local area. This proposed annexation consists of four parcels, all contiguous to current City limits. The annexation is being sought in conjunction with a zone change, which would change the zoning district to MR Medium-density Residential and P Public for the school property. The subject property is also a part of a plat that has been submitted to the city, to be known as Saddle Ridge, 13th Filing.

This application is consistent with PlanCheyenne and is supported by the intent of the subject land's Future Land Use Map designation and several of PlanCheyenne's general policies. This annexation meets the review criteria found in State statute as well.

Due to meeting the review criteria found in Wyoming State 15-1-402, staff recommends conditional approval by the Governing Body with the following three (3) conditions:

1. Make technical corrections to the boundaries of the submitted annexation map, per comments by the City Surveyor.
2. Correct the title block, per comments by Planning and Development Staff.
3. Correct the zoning note, per comments by Planning and Development Staff.

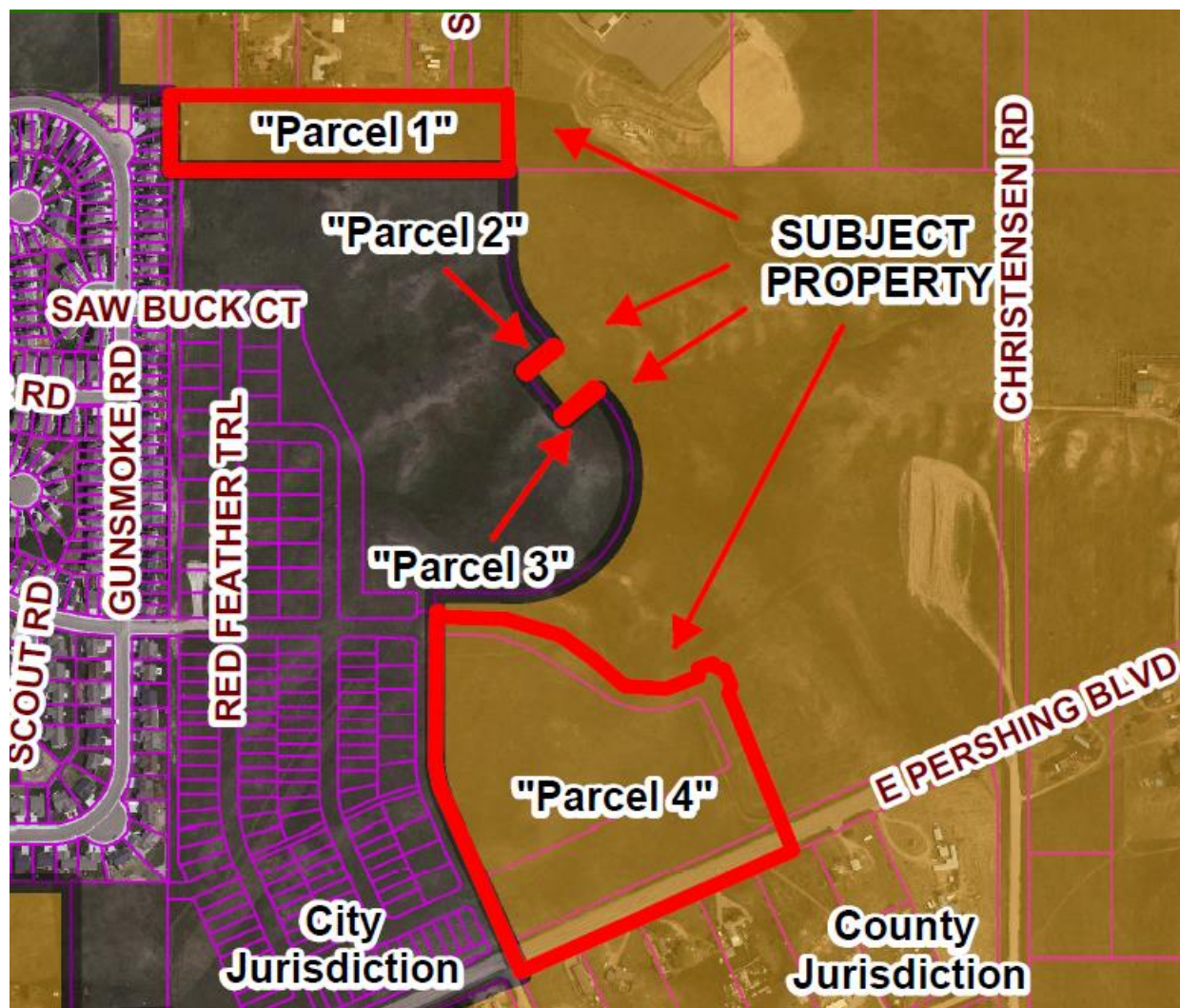
LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map

Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting the subject property located north of and including Pershing Boulevard, east of Farthing Road; also located south of Sage Road, east of Gunsmoke Road.

Source: Cheyenne/Laramie County GIS Cooperative Program

VIEW OF SUBJECT PROPERTY:



Photograph # 1 –Image of the subject property from E. Pershing Boulevard, facing due north.

Source: Planning and Development Department Image



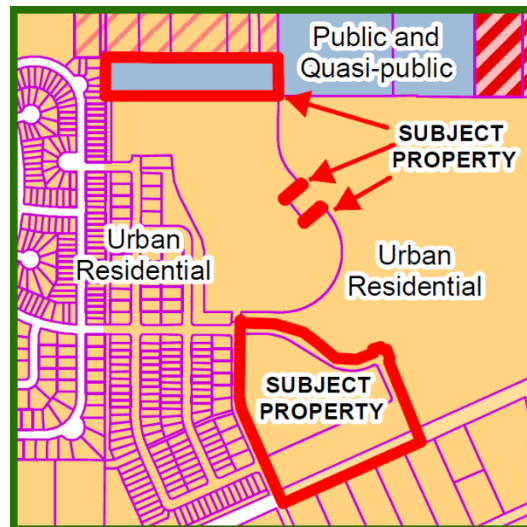
Photograph # 2 – Image of the subject property from Wilderness Trail ROW near Red Feather Trail facing due east (Saddle Ridge, 8th Filing shown in foreground, as closer views were unavailable due to construction).

Source: Planning and Development Department Image

PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

This annexation is consistent with PlanCheyenne. The subject property is within the Urban Service Boundary (USB) and, per Policy 1.2.B, is encouraged to develop with an urban character. Policy 1.2.A explains that the USB is meant to guide urban growth and distinguish between urban and rural places.

On the future land use map found in PlanCheyenne, the subject land has been mostly designated as Urban Residential. The Urban Residential land use designation includes residential uses as a primary use and includes a wide variety of supporting and complementary uses as secondary uses. The applicant is proposing to develop this property with residential uses, which is identified by PlanCheyenne as the preferred future land use. The applicant is also seeking to place a school within the southern portion of this annexation. Schools are identified as a preferred secondary use of the Urban Residential designation.



Map #3 – Future Land Use
Source: Cheyenne/Laramie County GIS
Cooperative Program

A portion of the subject property to the north has a future land use designation of Public and Quasi-public. However, this designation was assigned due to previous ownership of the property by Cheyenne Hills Church. The property is now owned by the applicant and is adjacent to other Urban Residential uses. The categories of the Future Land Use map do not wholly pre-determine zones or the uses within those zones.

ANNEXATION ELIGIBILITY DATA/ANALYSIS: Before any territory is eligible for annexation, the governing body must find that the following criteria are met (W.S. § 15-1-402 (a)):

COMMON WELFARE – *An annexation of the area is for the protection of the health, safety, and welfare of the persons residing in the area and in the city or town.*

This annexation would allow the property to access City water, sanitary sewer, and sanitation service. City police and fire services would be available immediately, which serves the public safety and welfare. As this annexation would allow the property to connect to water and sewer services (after extensions), it would enhance the environmental quality of the land. Therefore, the annexation of this property would increase the health, safety, and welfare of the residents of the Cheyenne area.

PART OF THE CITY – *The urban development of the area sought to be annexed would be constituted a natural, geographic, economic, and social part of the annexing city or town.*

This property would constitute a natural, geographic, economic, and social part of the City. The contiguity along all boundaries of the property make the parcel a natural geographic part of the City. The people who will live on this land are a part of the social and economic fabric that is Cheyenne.

LOGICAL EXPANSION – *The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed.*

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to property owners would also be available to this location.

CONTIGUOUS – *The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407.*

The subject property is comprised of four parcels, all contiguous with and adjacent to the annexing city. The annexation map refers to each portion of the subject property as Parcel 1, 2, 3, or 4. Parcels 1, 2, and 3 are each approximately 50% contiguous to current city limits. Parcel 4 is approximately 31.6% contiguous to current city limits. These parcels are shown on Map #2 on page 5.

UTILITIES – *If the city or town does not own or operate its own electric utility, its governing body is prepared to issue franchises as necessary to service the annexed area pursuant to W.S. 15-1-4102.*

Electric utility franchises are in place to serve the parcels.

CERTIFIED MAILING – *The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date, and location of the public hearing required by W.S. 15-1-405(a).*

A certified mailing was required to be made to property owners and agencies by 3/9/2018. Staff sent this certified mailing on 3/8/2018.

ANNEXATION REPORT DATA: In compliance with Wyoming State Statute 15-1-402 (c) the following information is herein provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. 15-3-202 (b) (ii).
- (ii) The total **estimated** cost of infrastructure improvements required of the landowners by the City related to the annexation of this vacant land is approximately \$0.00. Additional on- and off-site improvements may be required with subsequent development actions.
- (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. Police and Fire services will be provided immediately upon the recording of the annexation. Water and sewer services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner. Development will require extension of water and sewer services, which are available to the subject property.
- (iv) Fees for water, sewer, and sanitation services are a variable amount for residential units, based upon volume and meter size. Service costs will not be charged until development occurs.
- (v) The current property tax mill levy imposed is 67.17 and projected property tax mill levy imposed by the city is 72.17.
- (vi) The infrastructure described in (ii) above includes improvements required within the existing boundaries of the municipality to accommodate the proposed annexation.

REVIEW

Board of Public Utilities-BOPU: Board of Public Utilities, Linda Gunter

Bopu comments are the same as the Annexation Clearance statement. **P&D STAFF COMMENT: Provided as FYI.**

City Surveyor: Engineering Department, Jack Studley

1. Boundary data and legal descriptions appear in order. **P&D STAFF COMMENT: Provided as FYI.**

2. Due to recent changes in City Ordinance requirements for surveyed ties to City Control network, there is some confusion concerning the proper format to show such information. I have discussed this in detail with the filing Professional Land Surveyor, and modified maps are presently being prepared to reflect the agreed upon changes. These changes will be completed ASAP and are required prior to final approval.

P&D STAFF COMMENT: FULFILLED by revised map submittal

County Assessor: Laramie County Assessor, Clarice Blanton

Although proposed Saddle Ridge, 13th Filing, falls within the East half of Section 25-14-66, Lot 1, Block 1, Cheyenne Hills Subdivision should be included in the title block. **P&D STAFF COMMENT: FULFILLED by revised map submittal**

Environmental Health Dept.: Environmental Health Department, Roy Kroeger
Laramie County Small Wastewater System Regulations

Annexation of the property is recommended so as to provide access to public water and sewer service. Environmental Health supports providing public water and sewer access to properties north of this development along Sage Road. **P&D STAFF COMMENT: Provided as FYI.**

Urban Planning: Urban Planning, Eric Hammer

Proposed uses are best served by being connected to City water and sewer and within City limits. The property is within the Urban Service Boundary. **P&D STAFF COMMENT: Provided as FYI.**

Development: Development, Eric Hammer

Overall, the annexation seems to show a logical progression of incorporation for this development.

Technical corrections:

1. MR-2 no longer exists, please adjust your map to reflect that the proposed zoning is MR (and P Public for the school, per my comments on the zoning map amendment). **P&D STAFF COMMENT: FULFILLED by revised map submittal**

2. As a portion of the land has been platted, the title block should reflect this. **P&D STAFF COMMENT: FULFILLED by revised map submittal**

Reviewers with No Comments

Black Hills Corp: Black Hills Corp, Dustin McKen

City Engineer: Engineering Department, Amy Allen

County Attorney: Laramie County Attorney, Mark Voss

County Planning: Laramie Cty Planning & Devel., Nancy Trimble

Development: Development, Susana Montana

Engineering - Drainage: Engineering Department, Michael Vinson

Engineering - General: Engineering Department, Mark Escobedo

Engineering Tech/GIS: Engineering Department, Gary Stogsdill

Fire Department: Fire Department, Jim Schamerhorn

MPO: Metro Planning Office (MPO), Nancy Olson

Parks & Recreation: Parks and Recreation Admin, Teresa Moore

Police: Police Department, Brian Kozak

Public Works: Public Works, Nathan Beauheim

Reviewers Not Responding

CenturyLink: CenturyLink (formerly Qwest), Bob Bates

Charter (formerly Optimum): Charter (formerly Optimum), Bryan VanKirk

County Clerk: Laramie County Clerk, Laura Busey

County Public Works: Laramie County Public Works, Rob Geringer

County Sheriff's Office: Laramie County Sheriff, Danny Glick

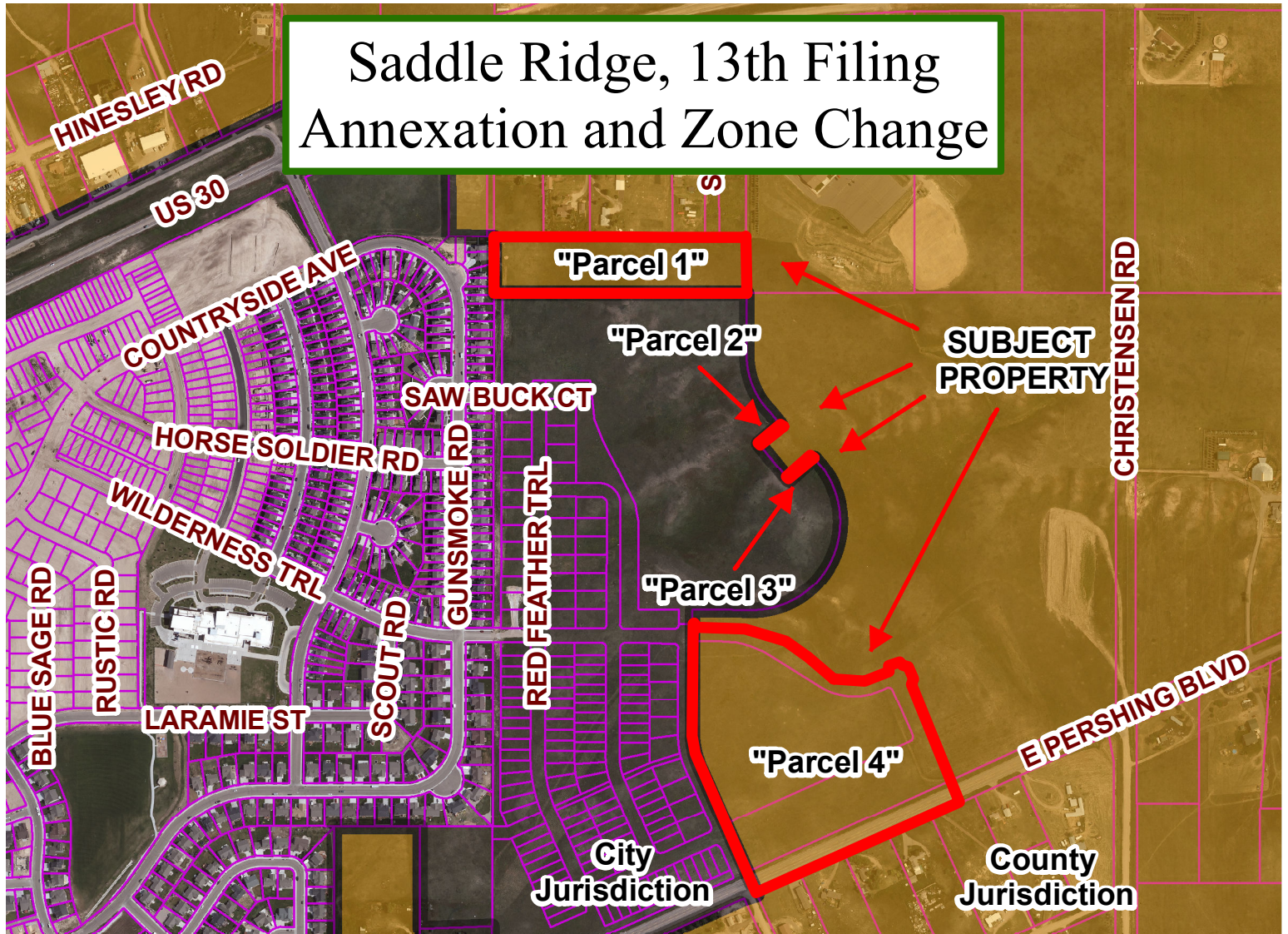
CenturyLink: CenturyLink (formerly Qwest), Kimberly Hessel

Other comments: None

Encl: Annexation Map

Cc: Agent, Owner, File

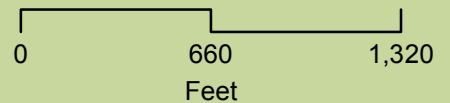
Saddle Ridge, 13th Filing Annexation and Zone Change



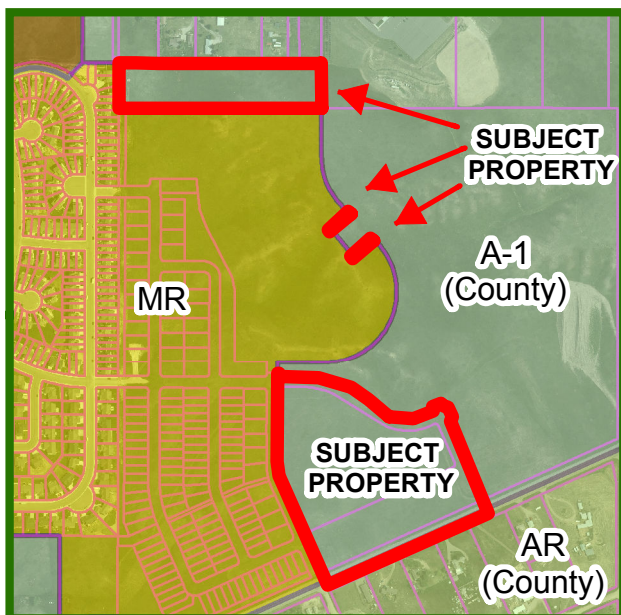
UDC-18-00074
Annexation
UDC-18-00078
Zone Change

Applicant: WJE LLC
307-634-8800

Scale applies to
above map only



Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use

